

and will separately re-issue and serve the OSC on Plaintiff and all parties.

10. 9:00 AM CASE NUMBER: C25-03801

CASE NAME: LUKE KEARNEY VS. SELENE FINANCE LP

HEARING ON DEMURRER TO: COMPLAINT

FILED BY: SELENE FINANCE LP

TENTATIVE RULING:

The hearing on Defendant Selene Finance LP's Demurrer to the Complaint is dropped as moot. Plaintiffs filed a First Amended Complaint on April 27, 2026.

11. 9:00 AM CASE NUMBER: C26-00262

CASE NAME: NIDAH NASRALLA VS. MERCEDES BENZ USA, LLC,

***MOTION/PETITION TO COMPEL ARBITRATION**

FILED BY: MERCEDES BENZ USA, LLC,

TENTATIVE RULING:

Defendant, Mercedes-Benz USA, LLC ("defendant" or "Mercedes"), moves the Court under both the California Arbitration Act and the Federal Arbitration Act to compel plaintiff to arbitrate the claims set forth in plaintiff's complaint, and to stay this action pending the outcome of arbitration.

The motion is **granted**. Parties shall submit the matter to arbitration. This proceeding is hereby stayed. **The Court maintains the case management conference on November 2, 2026, at 8:30 a.m.** for a status update on arbitration. All parties are ordered to file an updated Case Management Conference statement 15 days in advance of the conference reporting on the status of the arbitration. (The parties may choose to file a joint statement in this regard.)

Background

Plaintiff Nidah Mohamed Nasralla brought suit on January 23, 2026, alleging that on or about July 31, 2023, plaintiff leased a 2023 Mercedes-Benz C3 and the vehicle had electrical system defects. (See Complaint, ¶¶6, 9, 12.) The complaint asserts four causes of action under the Song-Beverly Act: (1) breach of Civil Code § 1793.2(d); (2) breach of Civil Code § 1793.2(b); (3) breach of Civil Code § 1793.2(a)(3); and (4) breach of the implied warranty of merchantability.

In response to the complaint, defendant filed this motion to compel arbitration based on provisions found in the Motor Vehicle Lease Agreement plaintiff signed with Mercedes Benz of Walnut Creek, the dealer from which plaintiff leased the vehicle. In support of its motion, defendant provides a declaration from counsel that attaches plaintiff's complaint as well as a signed copy of the lease agreement.

The arbitration agreement contained in the lease agreement states, under "Important